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Amending Acts

1. Vehicle and Transport Management (First Amendment) Act, 2050 2050.05.09
2. Public Procurement Act, 2063 2063.09.30
3. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.07
4. Some Nepal Acts Amendment Act to Maintain Gender Equality and End Gender Violence, 2072 2072.06.14
5. Some Nepal Acts Amendment Act, 2072 2072.11.13
6. Vehicle and Transport Management (Second Amendment) Act, 2073 2073.06.18
7. Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074 2074.06.30
8. Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075 2075.11.19
9. Some Nepal Acts Amendment Act, 2075 2075.11.19
10. Some Nepal Acts Amendment Act Relating to the Muluki Civil Code, 2076 2076.01.02
11. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act No. 45 of the year 2049

An Act Made to Provide for Legal Provisions Relating to Vehicles and Transport Management

Preamble: Whereas, it is desirable to strengthen, capacitate and make effective the transport service to prevent vehicle accidents, to provide compensation to the victims of accidents, to make insurance arrangements, and to provide transport facilities to the general public in a simple and accessible manner;

Now, therefore, Parliament has enacted this Act in the twenty-first year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Vehicle and Transport Management Act, 2049".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Vehicle" means a means of transportation that runs on the road by mechanical power.

(b) "Weight of vehicle" means the total weight of the vehicle.

Explanation: "Total weight" means the weight of the vehicle including its engine, chassis, other tools and

equipment, as well as the total load carrying capacity of that vehicle as mentioned in the vehicle registration certificate. (c) "Large vehicle" means a vehicle as per Section 3. (d) "Medium vehicle" means a vehicle as per Section 4. (e) "Small vehicle" means a vehicle as per Section 5. (f) "Public vehicle" means a vehicle used in transport service. (g) "Transport service" means the business of carrying passengers or goods from one place to another by a public vehicle for hire or reward. (h) "Fare" means the amount or charge collected by a public vehicle in consideration for providing transport service. (i) "Tourist vehicle" means a vehicle as per Section 7. (j) "Private vehicle" means a vehicle as per Section 8. (k) "Government vehicle" means a vehicle as per Section 9. (l) "Corporation vehicle" means a vehicle as per Section 10. (m) "Vehicle entitled to diplomatic facilities" means a vehicle as per Section 11. (n) "Passenger" means a person traveling by a public vehicle. (o) "Goods" means animals, birds, or any inanimate objects, other than human beings, transported in a public vehicle. (p) "Passenger vehicle" means a public vehicle providing transport service to passengers. (q) "Goods vehicle" means a public vehicle used for the business of transporting goods. (r) "Registration certificate" means the vehicle registration certificate issued upon registering a vehicle under Section 16. (s) "Driver" means a person who has obtained a driver's license. (t) "Driver's license" means a vehicle driver's license issued by an authorized officer under Section 50. (u) "Conductor" means a person who has obtained a conductor's license under Section 67, and that term also includes other checkers and helpers working on that vehicle. (v) "Security personnel" means an employee responsible for the security of passengers, goods, and the vehicle. (w) "Public place" means a public road, pavement, lane, river, bridge, path, or a place where the general public comes, goes, or stays, and that term also includes a designated place for passengers to board, alight, or park vehicles. (x) "Parking lot" means a designated place for parking vehicles. (y) "Bus station (Bus Bisouni)" means a designated place for passengers to board and alight for the purpose of traveling in a passenger-carrying public vehicle. (z) "Route" means a designated route for operating a public vehicle. (aa) "Long route (Long Route)" means a route from the place of departure to a destination at a distance of two hundred and fifty kilometers or more. (bb) "Medium route (Medium Route)" means a route from the place of departure to a destination at a distance exceeding one hundred kilometers but less than two hundred and fifty kilometers. (cc) "Short route" means a route from the place of departure to a destination at a distance ranging from twenty-five kilometers to one hundred kilometers. (dd) "Local route" means a route from the place of departure to a destination at a distance less than twenty-five kilometers. (ee) "Route permit" means a permit obtained under Section 77 to operate a vehicle on an approved route. (ff) "Fitness certificate (Jaanch Paas)" means a certificate issued after examining the mechanical condition of a public vehicle. (gg) "Insurance" means insurance that a vehicle owner or manager must arrange in relation to the vehicle, passengers, goods, driver, conductor, security personnel, other employees working on the vehicle, and third parties, and that term also includes comprehensive insurance relating thereto. (hh) "Vehicle owner" means a person, firm, company, or any other organized body whose name is entered as the owner of that vehicle in the vehicle registration certificate. (ii) "Manager" means a person entrusted with the responsibility of operating registered transport service in a systematic manner. (jj) "Passenger luggage (Yatri Gunt)" means personal goods that a passenger carries with them while traveling. (kk) "Traffic sign" means a notice, signal, or gesture given by a police officer or a driver of one vehicle to the driver of another vehicle, and that term also includes a notice, signal, or gesture affixed, placed, or installed in written or symbolic form for the control or direction of vehicles. (ll) "Pollution" means noise and smoke pollution emitted from a vehicle. (mm) "Department" means the Department of Transport Management, Ministry of amended by Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075.

Physical Infrastructure and Transport, Government of Nepal.

(nn) "Authorized officer" means the chief of the Transport Management Office.

- (oo) "Management Committee" means the Transport Management Committee formed under Section 144.
- (pp) "Examination Committee" means the Examination Committee formed under Section 146.
- (qq) "Transport Inspector" means a person appointed under Section 157.
- (rr) "Training Center" means a driver training center accredited by the Department under Section 159.
- (ss) "Area (Kshetra)" means an area specified as falling under the territorial jurisdiction of a Transport Management Office.
- (tt) "Prescribed" or "as prescribed" means prescribed or as prescribed under this Act or the Rules framed under this Act or a notified order issued by publishing a notice in the Nepal Gazette. Chapter-2

Classification of Vehicles

3. Large Vehicle: A vehicle listed in clause (a) of Schedule 1 having a weight exceeding ten tons shall be called a large vehicle. 4. Medium Vehicle: A vehicle listed in clause (b) of Schedule 1 having a weight from four tons to ten tons shall be called a medium vehicle. 5. Small Vehicle: A vehicle listed in clause (c) of Schedule 1 having a weight less than four tons shall be called a small vehicle. 6. Public Vehicle: (1) A vehicle that has obtained a registration certificate to operate transport service shall be called a public vehicle.

(2) Public vehicles shall be classified into two types: passenger-carrying and goods-carrying.

(3) Passenger-carrying public vehicles shall be divided into day and night services and categorized into the following classes for granting permits to operate transport service:-

- (a) Direct service,
- (b) Express service, and
- (c) Local service.

(4) The standard, speed, and other necessary arrangements of passenger-carrying public vehicles classified under sub-section (3) shall be as prescribed.

(5) For the identification of a public vehicle, a number plate as mentioned in clause (a) of Schedule 2 shall be placed on the front and back of such vehicle. 7. Tourist Vehicle: (1) A public vehicle that has obtained a registration certificate to provide transport service to foreign tourists shall be called a tourist vehicle.

(2) For the identification of a tourist vehicle, a number plate as mentioned in clause (b) of Schedule 2 shall be placed on the front and back of such vehicle. 8. Private Vehicle: (1) A vehicle that has obtained a registration certificate for private use shall be called a private vehicle.

(2) A private vehicle shall not be used for transport service.

(3) For the identification of a private vehicle, a number plate as mentioned in clause (c) of Schedule 2 shall be placed on the front and back of such vehicle. 9.

Government Vehicle: (1) A vehicle registered in the name of a government office and having obtained a registration certificate owned by the Government of Nepal, Provincial Government, or Local Level shall be called a government vehicle. (2) For the identification of a government vehicle, a number plate as mentioned in clause (d) of Schedule 2 shall be placed on the front and back of such vehicle. 10. Corporation Vehicle: (1) A vehicle registered in the name of an organized body wholly, majority, or partly owned by the Government of Nepal and having obtained a registration certificate shall be called a corporation vehicle. (2) For the

identification of a corporation vehicle, a number plate as mentioned in clause (e) of Schedule 2 shall be placed on the front and back of such vehicle. 11. Vehicle Entitled to Diplomatic Facilities: (1) A vehicle registered in the name of a diplomatic mission or an office, project, body, or person entitled to diplomatic facilities and having obtained a registration certificate shall be called a vehicle entitled to diplomatic facilities. (2) For the identification of a vehicle entitled to diplomatic facilities, a number plate as mentioned in clause (f) of Schedule 2 shall be placed on the front and back of such vehicle. 12. Not to be Used for Other Purposes: (1) A vehicle registered for one purpose shall not be used for another purpose. (2) A vehicle provided with facility of customs duty exemption shall not be used for a purpose other than that for which the customs duty exemption was granted. Chapter-3 Provisions Relating to Vehicle Registration 13. Entry Registration Required: (1) A person, firm, or company importing a vehicle from abroad shall submit an application for entry registration of such vehicle at the police office located at the place of entry into Nepal omitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066.. (2) Upon receiving an application for entry registration under sub-section (1), the police office shall, after examining the document of purchase of such vehicle and related documents, register the entry of such vehicle provisionally for fifteen days and issue a certificate of entry registration to the person, firm, or company importing such vehicle, and shall send the details of such vehicle to the relevant Transport Management Office as soon as possible. 14.

Vehicle Registration Required: (1) A person, firm, or company purchasing any vehicle or importing it from abroad, or an agent selling and distributing vehicles, shall register the vehicle with the authorized officer within fifteen days from the date of purchase or from the date of bringing it into Nepal omitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. after paying customs duty. (2) Without registering under sub-section (1), no vehicle shall be driven or allowed to be driven. 15. Application Required for Vehicle Registration: (1) If a vehicle is required to be registered under Section 14, the person, firm, company, or agent purchasing such vehicle, if purchased within Nepal omitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066., shall submit an application to the authorized officer together with the document of such purchase, or if imported from abroad, the importer person, firm, company, or agent shall submit an application together with the document of payment of customs duty for such vehicle and other relevant documents, in the prescribed format along with the prescribed fee. Provided that no registration fee shall be chargeable for registering a vehicle entitled to diplomatic facilities. (2) The person submitting the application under sub-section (1) must have attached a certified copy of Nepali citizenship and three recent passport-size photographs of himself/herself with the application. (3) In the case of a government vehicle, a letter from the government office in whose name such vehicle is to be registered, and in the case of a vehicle entitled to diplomatic facilities, a recommendation letter from the Ministry of Foreign Affairs, Government of Nepal, must also be attached. If a vehicle entitled to diplomatic facilities is to be registered in the name of an individual, such person must attach a copy of his/her passport or citizenship and three passport-size photographs. (4) If a foreign national residing in Nepal omitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. for any business or work wishes to register a vehicle for his/her private use, in addition to the matters mentioned in sub-sections (1) and (2), a letter of recommendation from the relevant diplomatic mission must also be attached. (5) If a vehicle is required to be registered in the name of a minor, the guardian of such minor shall submit an application on his/her behalf, attaching three passport-size photographs each of the minor and of himself/herself, as well as a certified copy of citizenship. 16.

Vehicle Registration Certificate: (1) Upon receiving an application for registration of a vehicle under Section 15, the authorized officer shall, after making necessary inquiry, register such vehicle in the name of the applicant and issue a registration certificate in the format as per Schedule 3. amended by the First Amendment. Provided that vehicles with a seat capacity exceeding fourteen and a total weight of four tons or

more shall not be registered as private vehicles, except in the name of national and international associations and organizations established for social, religious, charitable, and educational purposes, and organized bodies established under the prevailing law. (2) When registering a vehicle in the name of a minor, the name of the guardian shall also be mentioned in the registration certificate, and the guardian shall also be required to sign the registration certificate. (3) In the registration certificate, the total load carrying capacity of the vehicle as mentioned in the technical specifications provided by the manufacturer at the time of purchase shall be stated as the weight of the vehicle, and while stating the weight of the vehicle in such manner, the unladen weight and load carrying capacity of such vehicle shall be mentioned separately and clearly. (4) The registration certificate shall remain valid for one year from the date of issue. 17. Certificate of Roadworthiness to be Issued: (1) Before registering a vehicle under Section 16, it shall be examined, subject to the standards prescribed under Section 23, whether such vehicle is in a fit condition to be driven, and only if it is found to be in a fit condition to be driven, shall such vehicle be registered and the registration certificate issued. While issuing the registration certificate in such manner, a certificate of roadworthiness (Road Ordiness) shall also be issued to the owner of such vehicle. (2) The certificate of roadworthiness issued under sub-section (1) shall be affixed to the vehicle. 18. Joint Registration: If two or more persons submit an application under Section 15 to the authorized officer for registering a vehicle jointly, the authorized officer shall, after making necessary inquiry, register such vehicle jointly in the names of those persons and issue them a registration certificate as mentioned in Section 16. 19.

Temporary Registration: A vehicle may be temporarily registered in the following circumstances:- (a) If the person importing the vehicle has a reasonable ground for not being able to appear for registration within the period required for registration. (b) If, due to defect in the engine, chassis, or any other parts of the imported vehicle, the vehicle cannot be brought immediately for registration. (c) If, due to a dispute regarding compensation insurance with the company manufacturing such vehicle, or the selling agent, or the insurance company, the vehicle cannot be registered immediately. 20. Application for Temporary Registration: (1) If any circumstance mentioned in Section 19 occurs, the person importing the vehicle, or in his/her absence, his/her near relative, shall submit an application to the authorized officer for temporary registration in the name of the person importing the vehicle, together with the document of payment of customs duty for such vehicle, other relevant documents, and the prescribed fee in the prescribed format. (2) While submitting an application under sub-section (1), the applicant must have attached a certified copy of Nepali citizenship and three recent photographs of the person in whose name the temporary registration is to be made. 21. Temporary Registration Certificate: (1) Upon receiving an application for temporary registration of a vehicle under Section 20, the authorized officer shall examine whether such vehicle is in a condition to be temporarily registered under Section 19, and if so, register such vehicle temporarily and issue a temporary registration certificate in the format as per Schedule 4. (2) In the temporary registration certificate, it shall be indicated that the word "temporary" is to be written on the number plate to be placed on such vehicle. (3) A temporary registration certificate may be issued for a maximum period of six months, either at one time or in installments. 22. Vehicle to be Produced: While submitting an application for registering a vehicle under Section 13, 15, or 20, for transferring ownership under Section 37, or for altering any matter of a vehicle under Section 39, the person, firm, or company submitting such application shall also bring along the vehicle intended to be registered, transferred, or altered. 23.

Standards for Examination of Vehicles may be Prescribed: (1) The Government of Nepal may prescribe necessary standards in relation to the following matters to examine and ascertain whether a vehicle is in a fit condition to be driven:- (a) Regarding the mechanical condition of the vehicle. (b) Regarding the length, width, height, design, or shape of the vehicle. (c) Regarding pollution that may be caused by the vehicle. (d)

Regarding the period during which the vehicle may be driven. (2) While issuing a certificate of roadworthiness or a fitness certificate after examining whether a vehicle is in a fit condition to be driven, the authorized officer shall conduct the examination subject to the standards prescribed under sub-section (1).

24. Registration may be Refused: (1) If an application is received for registration of a vehicle and upon examining such vehicle under the standards prescribed under Section 23, the authorized officer finds that such vehicle is not in a fit condition to be driven, registration of such vehicle may be refused. (2) If registration of a vehicle is refused under sub-section (1), the authorized officer shall notify the applicant in writing stating the reason therefor. (3) Notwithstanding anything contained in sub-sections (1) and (2), if it appears reasonable for public interest due to environmental pollution, vehicle congestion, road condition, difficulty in vehicular movement, or other similar reasons, the Department may order any or all Transport Management Offices to suspend registration of such vehicles under Section 14 amended by the First Amendment.

25. Validity of Registration: (1) A vehicle registered in one area under this Act may also be driven in another area. (2) Notwithstanding anything contained in sub-section (1), a vehicle registered in one area shall not be driven in another area continuously or intermittently for more than one year. Provided that this restriction shall not apply in the case of government vehicles, corporation vehicles, vehicles entitled to diplomatic facilities, and vehicles that have obtained route permits.

26. Information to be Given: (1) If a vehicle registered in one area enters another area, the owner or driver of such vehicle shall give information thereof to the nearest police office within twenty-four hours of entry. (2) If a vehicle entering under sub-section (1) is required to be driven in that area for more than thirty days, the owner or driver of such vehicle shall obtain approval from the authorized officer within seven days of entry into such area.

27.

Transfer Registration: (1) If a vehicle registered in one area is required to be driven in another area for a period longer than mentioned in sub-section (2) of Section 25, the owner of the vehicle shall submit an application to the authorized officer for transfer registration in the prescribed format, along with the registration certificate, three recent passport-size photographs of himself/herself, and the prescribed fee. (2) Upon receiving an application under sub-section (1), the authorized officer shall, subject to the standards prescribed under Section 23, examine such vehicle and if found fit for transfer registration, shall register the transfer and issue a registration certificate to the vehicle owner.

28. Vehicle Records to be Maintained: The authorized officer shall cause to be entered in a register book, in a clearly legible manner, the name and address of the owner, date of registration, registration number, name of manufacturer, model, year, engine number, chassis number, type and weight of the vehicle, etc., for each vehicle registered under this Act, and keep the vehicle records updated. The photograph of the vehicle owner shall also be affixed on the relevant page of such register book.

29. Foreign Vehicle not to be Driven Without Permission: A vehicle registered abroad shall not be driven within Nepal omitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. without permission under the prevailing law.

30. Permission to Drive Foreign Vehicle: If permission is sought to drive a vehicle registered abroad within Nepal omitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066., the authorized officer may, upon collecting the prescribed fee, grant permission to drive such vehicle for a maximum period of one month. Provided that permission to operate transport service within Nepal omitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. shall not be granted to such vehicle.

31. Renewal of Registration Certificate: (1) The registration certificate shall be renewed within three months after the expiry of the period mentioned in the registration certificate under sub-section (4) of Section 16. (2) The vehicle owner or a person deputed by him/her shall submit the registration certificate to the authorized officer for renewal under sub-section (1), along with the prescribed fee.

Provided that no fee shall be chargeable for renewal of the registration certificate of a vehicle entitled to

diplomatic facilities.

(3) Upon submission of the registration certificate for renewal under sub-section (2), the authorized officer shall renew such registration certificate for another one year.

(4) If a vehicle owner comes to renew the registration certificate after the expiry of the period mentioned in sub-section (1), the authorized officer shall renew such registration certificate after collecting, in addition to the renewal fee, a surcharge of one hundred percent up to one year after expiry, two hundred percent up to two years, three hundred percent up to three years, four hundred percent up to four years, and five hundred percent up to five years. 32. Authorized Officer may Send Notice: If the registration certificate is not brought for renewal within the period mentioned in sub-section (1) of Section 31, in the case of a vehicle entitled to diplomatic facilities, the authorized officer may, through the Ministry of Foreign Affairs, notify the relevant diplomatic mission, office, or individual to renew the registration certificate of such vehicle. 33. Special Provision Regarding Renewal: Notwithstanding anything contained in sub-section (3) of Section 31, if the owner of a government vehicle, corporation vehicle, vehicle entitled to diplomatic facilities, or private vehicle wishes to have the registration certificate of his/her vehicle renewed at one time for up to five years, and submits the registration certificate along with the renewal fee payable for five years, the authorized officer may renew such registration certificate at one time for up to five years. 34. Registration Certificate Automatically Cancelled: (1) A registration certificate not renewed even within the period prescribed under sub-section (4) of Section 31 shall be automatically cancelled.

(2) The record of a vehicle whose registration certificate has been cancelled under sub-section (1) shall be struck off from the register book.

(3) A registration certificate whose record has been struck off from the register book under sub-section (2) shall not be renewed. 35. Re-registration may be Done: If a vehicle whose registration certificate has been cancelled and its record struck off under Section 34 is brought for re-registration, such vehicle shall be registered under Section 16 and a new registration certificate issued to the vehicle owner after collecting, in addition to the unpaid renewal fee and surcharge under Section 31, a penalty equal to double the surcharge under sub-section (4) of Section 31 for the number of years after which it is brought for registration. 36.

Notice to be Given if Owner's Address Changes: (1) If the permanent address of the owner of a vehicle registered under this Act changes, notice thereof shall be given to the authorized officer within one month, along with the registration certificate. (2) Upon receiving the notice under sub-section (1), the authorized officer shall indicate the new address on the registration certificate and also make the correction in the register book. 37. Transfer of Vehicle Ownership: (1) If the owner of a vehicle registered under this Act gifts, sells, or transfers ownership in any other manner to someone else, the owner shall submit an application to the authorized officer in the prescribed format for transfer of ownership of such vehicle within fifteen days, along with the registration certificate and the document of payment of vehicle tax. (2) If the vehicle owner dies, the successor in whose name the ownership is to be transferred shall submit an application to the authorized officer in the prescribed format for transferring such vehicle into his/her name within thirty-five days from the date of death of the vehicle owner, along with proof of death of the vehicle owner, the registration certificate, the document of payment of vehicle tax, and proof that he/she is the nearest successor. (3) Upon receiving an application for transfer of ownership under sub-section (1) or (2), the authorized officer shall, after making necessary inquiry and collecting the prescribed fee, effect the transfer by recording the particulars of transfer in the registration certificate. Provided that if applications for transfer are received from more than one equally ranked successor under sub-section (2), such vehicle shall be

registered jointly in the names of all such successors and ownership transferred accordingly. (4) If transfer of ownership of a vehicle is made under sub-section (3), the fact of transfer of ownership and change of name shall be recorded in the register book. (5) If, while making a transfer of ownership under this section, the authorized officer finds that any case relating to rights and interests in such vehicle is pending, such vehicle shall not be transferred into anyone's name until a final decision on such case. 38. Registration not to be Changed: Notwithstanding anything contained elsewhere in this Act, a vehicle registered as a goods vehicle and having obtained a registration certificate shall not be issued a registration certificate changing its registration to a passenger vehicle. 39. Alteration not to be Made Without Approval: (1) The vehicle owner shall not alter the vehicle in a manner that changes its color, amended by the First Amendment. seat number, shape, engine, or chassis without the approval of the authorized officer.

Provided that this sub-section shall not be deemed to prevent the replacement of normal parts and components. (2) If approval is sought for alteration under sub-section (1), the authorized officer may, after making necessary inquiry, grant approval for such alteration if it appears appropriate. added by the First Amendment. Provided that approval shall not be granted to change the detailed specifications (specifications) determined by the vehicle manufacturer company regarding the vehicle's design. added by the First Amendment. (2a) While granting approval for alteration under sub-section (2), a fee of fifty percent of the fee chargeable at the time of vehicle registration shall be collected. 40. Registration Certificate may be Suspended: (1) The authorized officer may, in the following circumstances, order the suspension of the registration certificate of a vehicle for the following periods:- (a) If the condition of the vehicle is poor and its operation is likely to cause harm to the life or property of the public, for the period until such vehicle is satisfactorily repaired, and (b) If the vehicle owner fails to fulfill any condition required to be fulfilled under this Act, or operates a vehicle in violation of any order given by the authorized officer within the ambit of this Act or the Rules framed under this Act, for a maximum period of six months. (2) While issuing an order to suspend the registration certificate under sub-section (1) to the vehicle owner, the authorized officer shall clearly state the reason therefor. (3) If the registration certificate is suspended under sub-section (1), the authorized officer shall give information thereof to the relevant police office. (4) If the registration certificate is suspended under sub-section (1), the vehicle owner shall surrender the registration certificate to the authorized officer within seven days from the date of the order. (5) After the period of suspension expires, the authorized officer shall return the registration certificate surrendered by the vehicle owner under sub-section (4) to him/her. (6) While returning the registration certificate to the vehicle owner under sub-section (5), the authorized officer shall clearly mention the period and reason for suspension on the registration certificate and also cause the said matter to be recorded in the register book. 41.

Cancellation of Registration Certificate: (1) If any vehicle registered under this Act is destroyed in any manner, or damaged beyond repair, or permanently taken outside Nepal omitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066., the vehicle owner shall submit an application within thirty days to the authorized officer in the prescribed format for striking off the record of such vehicle, along with the registration certificate. Provided that if a vehicle of archaeological importance or its parts are to be taken outside Nepal omitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066., the vehicle owner shall obtain prior approval from the authorized officer. (2) Upon receiving an application under sub-section (1), the authorized officer shall make necessary inquiry and if the facts are found true, cancel such registration certificate, record the said fact in the register book, and strike off the record of such vehicle. 42. Exemption from Renewal Fee: If a vehicle registered under this Act is confiscated for any reason, or involved in an accident, or damaged due to any other reason and becomes unfit to run or be driven for a period exceeding one year, the authorized officer may, upon the vehicle owner submitting an application

stating such fact along with the registration certificate and evidence thereof, withhold the registration certificate and exempt the vehicle owner from paying the renewal fee amended by the First Amendment. for the period during which such vehicle is unfit to be driven. 43. Duplicate of Registration Certificate to be Issued: (1) If the registration certificate is lost, torn, worn out and illegible, or destroyed due to any other reason, the vehicle owner shall submit an application to the authorized officer in the prescribed format within fifteen days from the date of occurrence, along with the prescribed fee. (2) Upon receipt of an application under sub-section (1), if upon necessary inquiry the facts are found correct, the authorized officer shall issue a duplicate of such registration certificate to the vehicle owner. (3) The authorized officer shall give notice of the issuance of a duplicate registration certificate under sub-section (2) to the relevant police office. 44.

Details to be Submitted: (1) A firm, company, or agent importing vehicles from abroad shall submit details to the authorized officer every month, mentioning the model, engine number, chassis number, type, and manufacturer's name of each vehicle imported, stating which vehicle was sold to whom and when, and how many vehicles remain in stock out of those imported. (2) The authorized officer may, from a firm, company, or agent importing and selling/distributing vehicles from abroad, demand any other necessary details and documents relating to import and sale/distribution of vehicles in addition to the details mentioned in sub-section (1). It shall be the duty of such firm, company, or agent to provide such demanded details and documents immediately. Chapter-4 Provisions Relating to Driver's License 45. Not to Drive a Vehicle: No person shall drive any vehicle without obtaining a driver's license. 46. Not to Allow Driving of Vehicle: No one shall allow any person who has not obtained a driver's license to drive a vehicle owned by or in the charge of that person. 47. Disqualification for Driver: The following persons shall be considered disqualified from obtaining a driver's license:- (a) A person who has not attained the age of 21 years for a large vehicle. (b) A person who has not attained the age of 18 years for a medium or small vehicle. Provided that a person who has attained the age of 16 years may obtain a driver's license for a motorcycle or other similar small two-wheeled vehicle. (c) A person suffering from epilepsy, insanity, vertigo, or a fainting type of illness. (d) A person whose eyesight is weak and even with the use of spectacles, normal vision is not satisfactory. (e) A person who is deaf to the extent of being unable to hear normal sound signals or voices. added by the Second Amendment. Provided that such a person may be granted a driver's license allowing him/her to drive a vehicle only on roads that meet the prescribed standards after testing his/her driving capability. (f) A person with a visual defect that prevents him/her from immediately distinguishing colors such as red, green, yellow, etc. (g) A person suffering from night blindness, or (h) A person whose hands or feet are disabled and unable to function. Provided that this clause shall not apply to specially designed vehicles for the disabled. 48.

Application for Driver's License: (1) A person who is not disqualified under Section 47 and wishes to obtain a driver's license to drive a vehicle shall submit an application to the authorized officer in the prescribed format. (2) Along with the application under sub-section (1), the applicant shall attach the prescribed fee for the driver's license, a certified copy of the citizenship certificate, three recent passport-size photographs of himself/herself, a medical fitness certificate issued by a Government of Nepal recognized medical practitioner after conducting a health examination, omitted by Some Nepal Acts Amendment Act, 2075. etc. 49. Examination of Applicant: (1) After an application is received under Section 48, the applicant shall be examined to ascertain whether he/she is capable of driving such vehicle and whether he/she has general knowledge of such vehicle or vehicle-related acts, rules, and traffic signs. The subjects of examination and the examination system shall be as prescribed by the Department. (2) An applicant who fails the examination conducted under sub-section (1) shall not be entitled to submit a fresh application under Section 48 until three months have elapsed from the date of completion of such examination. 50. Issuance of Driver's License: (1) The authorized officer shall, upon the recommendation of the Examination Committee omitted by

the First Amendment. after conducting the examination under Section 49 and for those who pass, issue a driver's license in the format as per Schedule 5. (2) While issuing a license under sub-section (1), it shall be clearly stated on such license whether the person is authorized to drive a large, medium, small vehicle, or any or all of them. (3) Notwithstanding anything contained elsewhere in this Act, provisions relating to driver's licenses issued to drivers of public vehicles shall be as prescribed. 51. Probationary Period: (1) A driver's license issued under Section 50 shall initially be issued on a probationary basis for one year. (2) If, during the probationary period, the driver does not violate the conditions to be observed under this Act or the Rules framed under this Act more than five times, upon his/her request, the authorized officer shall convert his/her driver's license into a permanent one. 52. Validity of Driver's License Obtained from Foreign Country: If a person has obtained a driver's license from a foreign country, and such person submits an application under Section 48 to drive the vehicle mentioned in that license, the authorized officer may collect the fee chargeable for a driver's license and issue a driver's license to such person. Provided that such person shall not be required to take any examination for obtaining the driver's license.

53. International Driver's License Automatically Valid: A person who has obtained an international driver's license may drive the vehicles mentioned in that license throughout Nepal omitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066.. 54. Validity of Driver's License: (1) A person who obtains a driver's license under Section 50 shall be entitled to drive only those vehicles mentioned in that license. (2) Subject to sub-section (1), the driver may drive such vehicle throughout Nepal omitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066.. (3) A driver (2) The application pursuant to sub-section (1) must be accompanied by the fee prescribed for the operator's permit, three recent passport-size photographs of the applicant, a certified copy of the citizenship certificate, and a certificate of fitness issued by a medical practitioner recognized by the Government of Nepal. 67. Issuance of operator's permit: (1) Upon receipt of an application for an operator's permit pursuant to Section 66, the authorized officer shall, after conducting necessary inquiries and if the details attached with the application appear to be true, issue an operator's permit to the applicant in the format as per Schedule-6. A person who has thus obtained an operator's permit shall bear the responsibility of operating public vehicles engaged in the transport service in which he is employed in an orderly manner. (2) An operator's permit issued pursuant to sub-section (1) shall remain valid for a period of five years from the date of issue. 68. Renewal of operator's permit: (1) An operator's permit must be renewed within three months after the expiry of the term written in such operator's permit pursuant to sub-section (2) of Section 67. (2) The operator shall submit the operator's permit to the authorized officer, attaching the prescribed fee for renewal, within the period mentioned in sub-section (1). (3) Upon submission of the operator's permit for renewal pursuant to sub-section (2), the authorized officer shall renew such operator's permit for a further period of five years. (4) From an operator coming to get the operator's permit renewed after the expiry of the period mentioned in sub-section (1), an additional fee of one hundred percent for up to one year of expiry, two hundred percent for up to two years, three hundred percent for up to three years, four hundred percent for up to four years, and five hundred percent for up to five years shall be charged in addition to the renewal fee, and such operator's permit shall be renewed. 69.

Automatic cancellation of operator's permit: (1) An operator's permit not renewed even within the period specified pursuant to sub-section (4) of Section 68 shall be automatically cancelled. (2) The record of an operator's permit cancelled pursuant to sub-section (1) shall be deleted from the registration book. (3) An operator's permit whose record has been deleted from the registration book pursuant to sub-section (2) shall not be renewed. 70. Notice required if operator's address changes: (1) If the permanent address of an operator changes, notice thereof shall be given to the authorized officer within one month. (2) Upon receiving

notice pursuant to sub-section (1), the authorized officer shall cause the new address of the operator to be recorded in the registration book. 71. Operator's permit may be suspended: If it is proven that an operator has violated the conditions to be observed by the operator under this Act or the rules made under this Act more than five times, the authorized officer may suspend the operator's permit of such operator for up to six months. 72. Operator's permit may be revoked: (1) If it is proven that an operator has any disqualification mentioned in Section 65, the authorized officer may revoke the operator's permit of such operator and order the operator to return such permit. (2) Within seven days from the date of receiving the order pursuant to sub-section (1), the operator shall return his operator's permit to the authorized officer. 73. Issuance of duplicate operator's permit: (1) If an operator's permit is lost or destroyed for any other reason, the operator shall, within seven days, submit an application to the concerned authorized officer in the prescribed format for a duplicate operator's permit, along with the fee prescribed by the First Amendment. (2) Upon the application pursuant to sub-section (1), after conducting necessary inquiries and if the details are found to be correct, the authorized officer shall issue a duplicate operator's permit to the operator. (3) The authorized officer shall give notice of the issuance of the duplicate operator's permit pursuant to sub-section (2) to the concerned police office. Chapter-6 Transport Management 74. Route determination: The Department shall, as required, determine routes for operating transport services by public vehicles in places deemed appropriate, and shall publish notice thereof publicly for the information of the general public. 75. Transport service not to be operated without route permit: No public vehicle shall operate a transport service on a route determined pursuant to Section 74 without obtaining a route permit. 76.

Application for route permit: If a public vehicle needs to use a route for the purpose of operating a transport service, the manager or vehicle owner shall submit an application to the authorized officer in the prescribed format along with the prescribed fee for the route permit. 77. Route permit to be issued: (1) Upon receipt of an application for a route permit pursuant to Section 76, the authorized officer shall, subject to Section 78, issue a route permit for the use of such route by such public vehicle in the format as per Schedule-7. (2) A route permit issued pursuant to sub-section (1) shall remain valid for a period of four months from the date of issue. 78. Matters to be checked when issuing route permit: When issuing a route permit to a public vehicle pursuant to Section 77, the authorized officer shall check whether the owner or manager of such public vehicle, as amended by the First Amendment, has fulfilled the following matters, and shall issue a route permit to such public vehicle only if they have been fulfilled:- (a) Insurance of the driver, operator, security personnel, and other employees working on the vehicle, and third party, (b) Inspection of the vehicle, and (c) Renewal of the registration certificate. 79. If route needs to be changed: (1) If the public vehicle specified in a route permit is to be used on another route before the expiry of the term of such route permit, the vehicle owner or manager shall again submit an application for a route permit pursuant to Section 76 and obtain a route permit. (2) Upon receipt of an application pursuant to sub-section (1), the authorized officer shall cancel the previously issued route permit for such public vehicle and issue a new route permit. 80. Multiple route permit may be issued: (1) Notwithstanding anything elsewhere written in this Act, the authorized officer may issue a route permit allowing a public vehicle to also use other routes that are related to the route on which it is already providing transport service, without affecting that route. (2) When issuing a multiple route permit allowing operation of transport service on more than one route pursuant to sub-section (1), the owner or manager of the public vehicle shall also pay the route fee applicable for each such route. 81.

Temporary route permit: (1) If a public vehicle needs to be operated on a route other than that written in the route permit due to special work, the owner or manager of such public vehicle shall submit an application to the authorized officer in the prescribed format for a temporary route permit, along with the prescribed fee. (2) Upon receipt of an application pursuant to sub-section (1), the authorized officer may, after conducting

necessary inquiries and if the details are found to be correct, issue a temporary route permit for a maximum of seven days. 82. Route permit may be refused: (1) Notwithstanding anything elsewhere written in this Act, when issuing a route permit to operate a transport service on a route, if, considering the passenger pressure on that route and the number of public vehicles engaged in the transport service, it does not appear necessary to issue a route permit on the same route for another vehicle, or if the authorized officer feels that issuing a route permit for a public vehicle would be adverse to the public interest due to pollution or any other reason, he may, after consulting with the Management Committee added by the First Amendment, refuse to issue the route permit. (2) Keeping in view the safety of public vehicles operating transport services on medium routes and long routes, and of the passengers travelling on them and the employees working in them, the standard of public vehicles providing transport service on such routes shall be as prescribed. The authorized officer may refuse to issue a route permit to operate a transport service on such route to public vehicles that do not meet the prescribed standard. 83. Renewal of route permit: (1) A route permit must be renewed within fifteen days, as amended by the First Amendment, after the expiry of the term written in the route permit pursuant to sub-section (2) of Section 77. (2) The vehicle owner, manager, or a person deputed by them shall submit an application to the authorized officer for the renewal of the route permit pursuant to sub-section (1) in the prescribed format, along with the prescribed fee. (3) Upon receipt of an application for renewal pursuant to sub-section (2), the authorized officer shall renew such route permit for a further period of four months. (4) From a vehicle owner coming to get the route permit renewed after the expiry of the period mentioned in sub-section (1), an additional fee of one hundred percent shall be charged in addition to the renewal fee for up to one month of expiry, and such route permit shall be renewed. 84.

Automatic cancellation of route permit: (1) If a route permit is not renewed even within the period specified pursuant to sub-section (4) of Section 83, such route permit shall be automatically cancelled. (2) The record of a route permit cancelled pursuant to sub-section (1) shall be deleted. (3) A route permit whose record has been deleted pursuant to sub-section (2) shall not be renewed. 85. Route permit may be issued again: If an application is made again for a route permit for a public vehicle written in a route permit that has been cancelled and its record deleted pursuant to Section 84, the owner or manager of such vehicle shall be charged the renewal fee and additional fee as per Section 83, and a fine of up to two thousand rupees, and then another route permit shall be issued for operating such vehicle pursuant to Section 77. 86. Route permit may be suspended: (1) If a public vehicle that has obtained a route permit under this Act meets with an accident or is damaged due to any other reason and cannot be operated for a period of four months or more, the vehicle owner shall submit an application to the authorized officer for the suspension of such route permit, stating the details and attaching the route permit. (2) Upon receipt of an application pursuant to sub-section (1), the authorized officer may, after conducting necessary inquiries and if deemed appropriate, suspend the route permit of such vehicle for the period during which such public vehicle cannot be operated. Added by the First Amendment. (2a) If transport service is disrupted by not operating a public vehicle on the route specified in the route permit, thereby adversely affecting public life, the Government of Nepal may suspend the route permit of such vehicles for a maximum of one month. (3) The renewal fee for the period of suspension of the route permit pursuant to sub-section (2) shall be waived. 87. Route permit may be revoked: If a public vehicle that has obtained a route permit under this Act is damaged or destroyed to the extent that it cannot be operated, the owner or manager of such vehicle shall submit an application to the authorized officer to revoke the validity of the route permit, attaching proof thereof. 88.

Issuance of duplicate route permit: (1) If a route permit is lost, torn, becomes illegible, or is destroyed for any other reason, the vehicle owner or manager shall, within seven days from the date of such occurrence, submit an application to the concerned authorized officer for a duplicate route permit in the prescribed format,

along with the prescribed fee. (2) Upon the application submitted pursuant to sub-section (1), the authorized officer shall, after conducting necessary inquiries and if the details are found to be correct, issue a duplicate route permit to the applicant. (3) The authorized officer shall give notice of the issuance of the duplicate route permit pursuant to sub-section (2) to the concerned police office. 89. Inspection to be carried out: (1) To obtain a route permit for any public vehicle, such vehicle must have been inspected under this Act. (2) Without inspection pursuant to sub-section (1), a route permit shall not be issued for any public vehicle. 90. Application for inspection: The owner or manager of a public vehicle wishing to have it inspected shall submit an application to the authorized officer in the prescribed format for inspection, along with the prescribed fee. 91. Inspection certificate to be issued: (1) Upon receipt of an application pursuant to Section 90, the authorized officer shall cause such public vehicle to be inspected, and if the mechanical condition and form of such vehicle are found to be in order, issue an inspection certificate in the prescribed format. Amended by the Act to Amend Some Nepal Acts, 2082.(2) The validity period of an inspection certificate issued pursuant to sub-section (1) shall be as follows:- (a) For up to five years from the date of registration of a new vehicle: up to one year, and (b) In the case of vehicles other than those in clause (a): up to six months. 92. Re-inspection to be carried out: (1) Re-inspection must be carried out by submitting an application for re-inspection to the authorized officer within seven days from the date of expiry of the period mentioned in sub-section (2) of Section 91. (2) If re-inspection is not carried out by the period mentioned in sub-section (1), and such vehicle is brought for re-inspection within thirty-five days from the date of expiry of that period, such vehicle shall be inspected by charging an additional one hundred percent fee in addition to the inspection fee. (3) If re-inspection is not carried out even within the period mentioned in sub-section (2), such inspection certificate shall be automatically cancelled.

If a public vehicle whose inspection certificate has been thus cancelled is brought for re-inspection again, a fine of up to five thousand rupees shall be imposed on the vehicle owner or manager in addition to the fee under sub-section (2), and after such vehicle is re-inspected, an inspection certificate shall be issued. 93. Name of transport service to be registered: (1) Without registering the name of the transport service with the Department, the vehicle owner or manager shall not use any public vehicle for the purpose of operating a transport service.

(2) A vehicle owner or manager wishing to register the name of a transport service with the Department shall submit an application to the Department in the prescribed format for such service registration, along with the prescribed fee.

(3) Upon the application submitted pursuant to sub-section (2), the Department shall, after conducting necessary inquiries and if it deems appropriate to register the name of such transport service, issue a permit to the applicant in the format as per Schedule-8 to operate the transport service under that name. If the vehicle owner or manager who has obtained a permit to operate the transport service wishes to cease providing such transport service, he shall obtain prior approval from the Department.

(4) A permit issued pursuant to sub-section (3) shall remain valid for a period of five years from the date of issue.

(5) Provisions relating to the appointment, service conditions, and facilities of employees working in a transport service registered under this section shall be as prescribed. 94. Renewal of permit to operate transport service: (1) A permit issued to operate a transport service must be renewed within three months after the expiry of the period mentioned in sub-section (4) of Section 93.

(2) The vehicle owner, manager, or a person deputed by them shall submit an application to the Department

for renewal of the permit pursuant to sub-section (1) in the prescribed format, along with the fee.

(3) Upon receipt of an application for renewal pursuant to sub-section (2), the Department shall renew such permit for a further period of five years.

(4) From a vehicle owner or manager coming to get such permit renewed after the expiry of the period mentioned in sub-section (1), an additional fee of one hundred percent shall be charged in addition to the renewal fee for up to one month of expiry, and the permit shall be renewed. 95.

Automatic cancellation of permit to operate transport service: (1) If a permit to operate a transport service is not renewed within the period specified pursuant to sub-section (4) of Section 94, such permit shall be automatically cancelled. (2) The record of a permit cancelled pursuant to sub-section (1) shall be deleted. (3) A permit whose record has been deleted pursuant to sub-section (2) shall not be renewed again. 96.

Determination of fare: (1) The fare rate to be charged by passenger-carrying and goods-carrying public vehicles operating a transport service on any route shall be as prescribed. (2) The maximum weight of luggage that a passenger may carry free of charge, and the maximum weight of luggage that may be carried with oneself on payment of fare, as well as the fare, shall be as prescribed. (3) Fare shall not be charged in excess of the fare rate prescribed under this section. 97.

Person without displaying identity card not to sell passenger tickets: A person involved in selling passenger tickets for a public vehicle shall not sell passenger tickets in the name of such transport service without displaying the employee identity card of the registered transport service operating such public vehicle. 98.

Format of passenger ticket: (1) The format of the passenger ticket for a public vehicle shall be as prescribed. (2) A person selling passenger tickets pursuant to sub-section (1) must affix the seal of the concerned transport service on the ticket. 99.

Bill with details of goods transport to be given when transporting goods: When a goods-carrying public vehicle transports any type of goods, it shall give a goods transport bill to the owner of the goods, containing details of such goods. The format of the bill to be given shall be as prescribed. 100.

Passenger list to be prepared: The manager or vehicle owner operating a transport service on a medium route or long route as prescribed by the Department shall prepare a passenger list clearly stating the name, age, and address of all passengers, driver, operator, security personnel, and other employees working in that vehicle, who travel in his vehicle. One copy of the passenger list so prepared shall be kept with oneself, and another copy shall be submitted to the authorized officer or a person designated by him before the departure of such vehicle towards the destination. 101.

Passengers and goods to be delivered safely: (1) After accepting goods or passengers, it shall be the duty of the owner or manager of a public transport service to deliver them safely from the start of the journey to the destination within the specified time.

Provided that the time for reaching the destination shall not be fixed in a manner causing inconvenience to passengers. (2) Even if a public vehicle breaks down or cannot proceed due to an act of God, it shall be the mandatory duty of the driver, operator, security personnel, or other employees of such vehicle to take care of the convenience of the passengers and ensure the safety of the goods in the vehicle. (3) Even if the vehicle cannot proceed due to the circumstances mentioned in sub-section (2), the vehicle owner or manager shall make arrangements to get the passengers to their destination. 102.

Passengers not to be carried in excess of seats: A passenger-carrying public vehicle shall not be operated carrying passengers in excess of the seat number written in the registration certificate of that vehicle. 103.

Journey rest to be taken: A passenger-carrying public vehicle running for a distance of more than four hours shall take a rest of half an hour once every four hours. 104.

Driver's shift to be changed: In a passenger-carrying public vehicle operating transport service on a long route, it shall be the duty of the manager or vehicle owner operating the transport service to keep at least two drivers mandatorily and have them drive the vehicle alternately after

every six hours, as amended by the First Amendment. 105. Prohibition on travelling without ticket: No passenger shall travel without having with him a ticket obtained by paying the prescribed fare for the destination up to which he is travelling. 106. Information about route map and timetable to be provided: (1) The authorized officer shall cause to be posted or installed at every bus station the route map of the destination departing from that bus station, and the timetable of the departure time of public vehicles and the time of arrival at the destination, for information. (2) If there is any change in the route, map, or timetable posted or installed pursuant to sub-section (1), the authorized officer or a person deputed by him shall make arrangements to immediately inform the passengers thereof. 107.

Seats to be reserved: (1) It shall be the duty of the manager or vehicle owner operating the transport service to reserve four seats for persons with disabilities and two seats for women in a large passenger-carrying public vehicle running on a local route. (2) It shall be the duty of the manager or vehicle owner operating the transport service to reserve two seats for members of Parliament and two seats for women in a passenger-carrying public vehicle running on a long route. Provided that such seats shall be reserved only up to four hours before such vehicle departs towards the destination. (3) A ticket purchased by a member of the Legislature-Parliament, as amended by the Act to Amend Some Nepal Acts, 2072 (currently the Federal Parliament), pursuant to sub-section (2) shall not be transferable to the name of any other passenger. 108. Security personnel may be kept: If the manager or vehicle owner operating a passenger-carrying public transport service on a medium route or long route requests the Government of Nepal to provide security personnel on that vehicle for the safety of the vehicle and passengers, or if the Government of Nepal sees the need to deploy government security personnel on such vehicle, the Government may provide the required number of security personnel upon charging the prescribed fee. 109. Misconduct not to be committed: No one shall commit misconduct towards passengers, drivers, operators, or security personnel. 110. Smoking not to be done in public vehicle: Smoking shall not be done in a public vehicle. 111. Talking to driver not to be done: While a public vehicle is in motion, no one shall talk to the driver of that vehicle or do or cause to do any act that impedes the driver in driving the vehicle. 112. Found property to be handed over: Any property found in a public vehicle shall be handed over by the employee of that vehicle who is on duty to the vehicle owner or manager within twenty-four hours of its being found. The property found shall be handed over by the vehicle owner or manager to the authorized officer or the nearest transport entrepreneurs' association office within twenty-four hours of its coming into his possession. 113. Refusal to take passengers not allowed: A public vehicle other than those running on medium or long routes or those providing express transport service shall not refuse to take passengers when the vehicle is empty. 114.

Special power of Government of Nepal: Notwithstanding anything elsewhere written in this Act, the Government of Nepal may issue an order to the vehicle owner or manager requiring a public vehicle to operate a transport service in a certain place for a certain period. Chapter-7 Traffic Control 115. Determination of speed of vehicle: (1) If the Department finds it necessary to determine the speed for driving vehicles in relation to any public place, it may determine the speed of vehicles in that place and prohibit driving vehicles at a faster speed than that. In a place where speed has been thus determined, vehicles shall not be driven at a faster speed than the determined speed. (2) In a public place where speed has been determined and driving at a faster speed is prohibited pursuant to sub-section (1), the Department shall cause a notice or sign relating to the determined speed to be posted or installed. (3) Sub-section (1) shall not apply in the case of fire engines, ambulances, and vehicles driven in the course of carrying sick persons. Provided that such vehicle shall use a special type of sound and light to warn pedestrians and other vehicles on the road. 116. Weight of vehicle: The Department may fix a limit for the weight of vehicles in relation to any public place. If a weight limit for vehicles has been thus fixed, no one shall drive or cause to drive a

vehicle in such public place with a weight exceeding the weight so fixed. 117. Limit of persons and goods to be placed in vehicle to be fixed: (1) The Department shall determine the number of persons and the weight of goods that may be placed in a public vehicle and publish a notice thereof for the information of the general public. (2) Persons or goods shall not be placed in any vehicle in excess of the number of persons and the weight of goods determined pursuant to sub-section (1). 118. Prohibition on driving vehicle: Notwithstanding anything elsewhere written in this Act, the Department may, for public safety and the welfare of the general public, prohibit the driving of any vehicle in any public place. Where a prohibition has been thus imposed, the Department shall cause a notice thereof to be posted, hung, or installed in that place. 119.

Posting, hanging, or installing traffic signs: (1) The Department shall cause necessary traffic signs, in accordance with international practice in terms of color, shape, and design, to be posted, hung, or installed in public places where it deems necessary. (2) Traffic signs posted, hung, or installed pursuant to sub-section (1) shall not be removed, altered, changed, erased, torn, or tampered with by anyone other than the Department or a person deputed by the Department from that place. 120. Traffic signs to be observed: (1) When driving a vehicle, the driver shall observe traffic signs. (2) Traffic signs to be observed by the driver shall be as prescribed. 121. Parking places and bus stations to be determined: The authorized officer shall, in consultation with the office bearers of local bodies in villages, towns, and districts, determine parking places and bus stations in a manner that does not adversely affect traffic on main roads. 122. Vehicle not to be kept in a manner causing danger: (1) No vehicle shall be kept in any public place in a manner that causes danger, obstruction, or inconvenience to any other vehicle or person. (2) If a vehicle breaks down while being driven, and it is not possible to immediately take it elsewhere, it shall be kept by the left side of the road in a manner that prevents accidents, and during nighttime, a red light or reflector shall be attached to such vehicle so that it can be seen by other vehicles from a distance. 123. Persons not to be placed in other parts of vehicle: The driver, vehicle owner, or manager shall not drive or cause to drive a vehicle with persons placed in parts of a vehicle running on long and medium routes other than the seats built for sitting, and in a vehicle running on local routes, in parts other than the seats built for sitting and the interior. 124. Acts obstructing driver not to be done: No one shall place goods, stand, or behave in any manner that directly or indirectly causes obstruction to the driver inside the driver's cabin. 125. Obstruction of traffic not to be caused: No goods or vehicle shall be placed in any public place in a manner that obstructs the movement of any person or vehicle. Provided that if due to any special circumstances it becomes necessary to place some goods in a public place for some time, the nearest police office shall be informed thereof and approval of such office shall be obtained. 126.

Sign to be placed when digging pit in public place: (1) Prior approval of the nearest police office shall be obtained when digging a pit in any public place for any work. (2) When granting approval to dig a pit in a public place pursuant to sub-section (1), it shall be ensured that a sign is placed in that place in a manner that prevents accidents. 127. Sign to be placed on vehicle: On a goods-carrying public vehicle engaged in transporting any type of hazardous goods, a sign shall be placed visibly to inform other vehicles and the general public that such goods are present. 128. Not to divert vehicle or take passengers hostage: (1) While a driver is driving his vehicle on a designated route, no person shall use threats, intimidation, or any kind of force to cause or have such vehicle taken by another route. (2) No one shall take any person in a vehicle hostage and make any kind of demand for the release of such vehicle or the person taken hostage. 129. Damage not to be caused to vehicles and passengers involved in accident: When a vehicle meets with an accident, no one shall beat passengers or any person working in the vehicle who are killed or injured, or embezzle, snatch, or cause any kind of harm or loss to their belongings. 130. Safety belt and helmet to be worn while driving: (1) While driving a vehicle as prescribed, the driver and the person sitting in the front seat

shall fasten their safety belts. (2) The driver of a motorcycle or other similar two-wheeler, and the person sitting on such vehicle, shall wear a safety helmet. 131. Documents to be shown when demanded: (1) Any driver shall show the driving license when a police officer or transport inspector wishes to see it in the course of inspection. (2) If a police officer or transport inspector wishes to see the registration certificate of any vehicle or the route permit of a public vehicle in the course of inspection, the driver, vehicle owner, or manager of such vehicle shall show the registration certificate or route permit. 132.

Vehicle to be stopped: The driver shall stop the vehicle he is driving and keep it stationary for a suitable time as required in the following circumstances:- (a) When a police officer or transport inspector signals or orders to stop the vehicle. (b) When an animal is startled or frightened and likely to become uncontrollable, and the person in immediate charge of that animal signals or requests to stop the vehicle. (c) When a vehicle accident has occurred causing loss or damage to any person, animal, or property. (d) When people are crossing at a zebra crossing, or when a traffic light at an intersection or crossroads signals stop. 133. Duty of driver in case of accident: (1) If a vehicle causes an accident resulting in any kind of danger or injury to the life or body of a person, the driver, operator, security personnel, or other employee working in that vehicle shall immediately make necessary arrangements for the treatment of such person. (2) If there is no police officer at the place where the vehicle accident occurred pursuant to sub-section (1), the driver shall immediately give information and details of the accident to the nearest police office. If any police officer asks anything about the accident to the concerned vehicle driver, he shall tell everything asked. 134. Inspection of vehicle involved in accident: If it is deemed necessary to inspect the vehicle causing or involved in the accident for the purpose of investigation of the accident, the concerned police officer may have such vehicle produced before him or go to the place where such vehicle is and inspect it. 135. Vehicle to be driven from the left side: (1) While driving a vehicle in any public place, the driver shall drive keeping to the left side, except in places prescribed. (2) If it is necessary to overtake a vehicle going ahead, the driver of the vehicle behind shall signal, and only after the driver of the ahead vehicle signals to go ahead shall the vehicle behind overtake from the right side. If the vehicle behind gives a signal to overtake, the vehicle ahead shall, depending on the situation, signal to the vehicle behind to go ahead. 136. Pedestrians to walk on footpath: On a road with a footpath, people shall walk on that footpath. When walking on a road without a footpath, one shall walk keeping to the edge of the road. 137. Road to be crossed from designated place: When crossing a road, a pedestrian shall cross only at a zebra crossing, subway, overhead bridge, or a place designated for crossing such road. 138.

Pets not to be let loose: Domestic pets or birds shall not be let loose in a public place in a manner that obstructs the driving of vehicles or walking of people. 139. Information to be provided: (1) The owner of a vehicle shall provide any information demanded by the authorized officer, transport inspector, or police officer in relation to any vehicle. (2) If the information pursuant to sub-section (1) relates to a public vehicle or its driver, operator, security personnel, or any employee working in such vehicle, the owner or manager of such public vehicle shall provide the information so demanded to the authorized officer, transport inspector, or police officer as soon as possible. 140. Roving inspector: (1) A police officer or transport inspector may conduct roving inspections as necessary to inspect whether this Act or the rules made under this Act have been complied with or not. (2) While conducting a roving inspection pursuant to sub-section (1), if the police officer or transport inspector finds that an act mentioned in Section 164 has been committed, he may immediately impose the penalty mentioned in that section on the person committing such act. 141. Driver not to give his license to others: No driver shall give his license to another person for driving a vehicle. 142. Intoxicating or other drugs not to be consumed: While driving a vehicle, the driver shall not consume intoxicating or any other type of drugs. 143. Lights to be turned on when driving at night: When driving any

vehicle in the dark or in foggy conditions, the lights of such vehicle shall be turned on. 144. Vehicle not in proper condition not to be driven: A vehicle whose any part or component is damaged or whose condition is not proper shall not be driven. 145. Necessary assistance to be provided: Any vehicle shall provide necessary assistance to a vehicle that has met with an accident or to the passengers in that vehicle. 146. Publicity to be made: In order to prevent vehicle accidents and to inform the general public about traffic signs, the Department shall, from time to time, make arrangements to broadcast programs related to traffic signs through various means of communication. 147. Vehicle not to be driven negligently: No driver shall drive a vehicle negligently. Chapter-8 Provisions Relating to Insurance 148.

Insurance of vehicle to be done: (1) The vehicle owner or manager shall get each vehicle insured as prescribed. (2) The registration certificate of a vehicle not insured pursuant to sub-section (1) shall not be renewed, and if such vehicle is a public vehicle, such public vehicle shall not be registered to operate a transport service and a route permit shall not be provided. 149. Insurance of driver, operator, security personnel, and other employees: (1) The vehicle owner or manager shall obtain accident insurance for the prescribed amount for the driver, operator, security personnel, and other employees working in that vehicle, of each public vehicle engaged in transport service. (2) If a driver, operator, security personnel, or other employee suffers disability or death due to a vehicle accident, the insured amount payable therefor shall be received by the person himself or his close heir. (3) If a public vehicle meets with an accident while operating a transport service without insuring the driver, operator, or security personnel as per sub-section (1), and any loss or damage is caused to them, the vehicle owner or manager shall pay the insurance amount under sub-section (1) that they should have received, to them or their heirs as compensation. 150. Insurance of passengers: (1) The vehicle owner or manager operating a transport service on a prescribed route shall obtain accident insurance for the prescribed amount for each passenger travelling. (2) If a passenger suffers disability due to a vehicle accident, he shall receive the accident insurance amount for the disability, and if he dies due (3) Other than as mentioned in sub-section (1) or (2), the authorized officer may impose a fine of two hundred to one thousand rupees on a person who does or causes to do any act contrary to this Act or the rules made or orders issued under this Act. (4) A person who does or causes to do any act contrary to Section 128 may be punished by the court with a fine of up to twenty-five thousand rupees or imprisonment for up to five years or both, and the court may also order such person to pay appropriate compensation to the person suffering loss or damage. (5) A person who does or causes to do any act contrary to Section 165 may be punished by the court with a fine of one thousand rupees or imprisonment for up to one year or both, and the court may also order such person to pay appropriate compensation to the person suffering loss or damage. Amended by the First Amendment. 161.

Punishment in case of death: (1) If a person, while driving a vehicle, runs over, hits, or causes a vehicular accident in any manner, and as a result of such accident, a person inside or outside the vehicle, wherever situated, dies immediately or within twenty-one days as a result of the same injury, and if such act was done with the intention of causing death, the person driving the vehicle in such manner shall be liable to life imprisonment. If a person did such an act with the intention of causing death but death did not occur, the person driving the vehicle shall be liable to imprisonment for five to twelve years according to the gravity of the offense. Amended by the Act to Amend, Consolidate, Harmonize and Repeal Some Nepal Laws, 2074. (2) If a person drives a vehicle negligently, failing to take the necessary precautions even when the possibility of death is apparent, and thereby runs over, hits, or causes a vehicular accident in any manner, and as a result of such accident, a person inside or outside the vehicle, wherever situated, dies immediately or within twenty-one days as a result of the same injury, the person driving the vehicle in such manner shall be liable to imprisonment for three to ten years and a fine of thirty thousand to one hundred thousand rupees. (3) If a

vehicular accident occurs while driving a vehicle in circumstances where the possibility of death is not apparent, and a person inside or outside the vehicle, wherever situated, dies as a result, the person driving the vehicle shall be liable to imprisonment for up to one year or a fine of up to two thousand rupees or both. (4) If a person without a driving license commits an offense under sub-section (1) or (2) by driving a vehicle, such person shall, in addition to the punishment under the same sub-section, be liable to an additional fine of two thousand rupees. Provided that Amended by the Act to Amend, Consolidate, Harmonize and Repeal Some Nepal Laws, 2074. no such additional fine shall be imposed in cases of life imprisonment. (5) If the owner of a vehicle or the person responsible for the vehicle allows a person without a driving license to drive the vehicle, and as a result, a person is run over, hit, or an accident occurs causing death, the person allowing the vehicle to be driven shall be liable to imprisonment for up to two years. Amended by the First Amendment. 162.

Punishment in case of mutilation: Amended by the Act to Amend, Consolidate, Harmonize and Repeal Some Nepal Laws, 2074. (1) If a person, by driving a vehicle, causes a person to be run over, hit, or an accident occurs, and as a result of such accident, a person inside or outside the vehicle, wherever situated, is mutilated, and if such act was done maliciously, the person driving the vehicle shall be liable to imprisonment for three to ten years and a fine of up to thirty thousand rupees. If the injury heals and the limb becomes functional, the person driving the vehicle shall be liable to a fine of five thousand rupees. (2) If a person without a driving license commits any offense mentioned in sub-section (1) by driving a vehicle, such person shall, in addition to the punishment under that sub-section, be liable to an additional fine of five thousand rupees. (3) If the owner of a vehicle or the person responsible for the vehicle allows a person without a driving license to drive the vehicle, and as a result, a person is run over, hit, or an accident occurs causing mutilation to a person inside or outside the vehicle, wherever situated, the person allowing the vehicle to be driven shall be liable to Amended by the Act to Amend, Consolidate, Harmonize and Repeal Some Nepal Laws, 2074. half the punishment imposed on the principal offender. 163.

Awarding medical expenses, funeral expenses and compensation: (1) If any party suffers any kind of loss or damage from a vehicular accident, the medical expenses and compensation amount as follows shall be recovered from the driver, vehicle owner or manager and awarded to the aggrieved party:- (a) In case of death, the heir of the deceased shall be awarded up to fifty thousand rupees for funeral expenses, Amended by the Act to Amend Some Nepal Acts to Establish Gender Equality and End Gender-Based Violence, 2072. and for compensation, the accident insurance amount receivable by the third party under this Act if third party insurance was not taken. (b) In case of mutilation, if the person becomes unfit for work even after healing, for compensation, the accident insurance amount receivable by the third party under this Act for mutilation if third party insurance was not taken, and if the limb becomes functional, for medical expenses, Amended by the Act to Amend Some Nepal Acts to Establish Gender Equality and End Gender-Based Violence, 2072. twenty-five thousand to fifty thousand rupees. (2) If a person dies from a vehicular accident, the Chief District Officer shall immediately recover the funeral expenses and compensation amount for the heir of the deceased, and in case of mutilation, the medical expenses amount for the person mutilated, from the vehicle driver, owner or manager as per sub-section (1), Amended by the Act to Amend Some Nepal Acts to Establish Gender Equality and End Gender-Based Violence, 2072.. (3) Other than as mentioned in sub-section (1), if a driver drives a vehicle in violation of this Act or the rules made or orders issued under this Act, causing an accident resulting in injury to any person, the Chief District Officer shall, considering the nature of the injury, immediately order the driver, vehicle owner or manager to pay twenty-five thousand rupees Amended by the Act to Amend Some Nepal Acts to Establish Gender Equality and End Gender-Based Violence, 2072. for medical expenses. Amended by the Act to Amend Some Nepal Acts to

Establish Gender Equality and End Gender-Based Violence, 2072.

Added by the First Amendment.

(6) The insurance amount payable by the insurance company for compensation mentioned in this section shall be paid as soon as possible. 164. Transport Inspector or police may impose immediate punishment: (1) Notwithstanding anything contained elsewhere in this Act, for an offense listed below committed for the first time, a fine of Amended by the Act to Amend Some Nepal Acts to Establish Gender Equality and End Gender-Based Violence, 2072. five hundred rupees, for the second time, a fine of Amended by the Act to Amend Some Nepal Acts to Establish Gender Equality and End Gender-Based Violence, 2072. one thousand rupees, and for the third or subsequent time, a fine of Amended by the Act to Amend Some Nepal Acts to Establish Gender Equality and End Gender-Based Violence, 2072. one thousand five hundred rupees may be imposed immediately by a Transport Inspector or an officer of at least the rank of Assistant Police Inspector:-

- (a) Driving a vehicle in violation of traffic signals or signs.
- (b) Stopping a vehicle in a place or at a time where stopping is prohibited.
- (c) Turning a vehicle or giving a sound signal in a place where turning or giving a sound signal is prohibited.
- (d) Driving a vehicle from the wrong side of the road.
- (e) Driving a vehicle in the opposite direction on a one-way road.
- (f) Driving a vehicle that is not in proper condition.
- (g) Driving a vehicle at a speed exceeding the prescribed speed limit.
- (h) Driving a vehicle at night without lights.
- (i) Driving a vehicle under the influence of alcohol.
- (j) Parking a vehicle in a public place causing obstruction to others.
- (k) Driving a vehicle in a place or at a time where driving is prohibited.
- (l) Driving a vehicle without a number plate.
- (m) Driving a vehicle with a weight exceeding the prescribed weight limit in an area where the weight limit is set.
- (n) Driving a vehicle without wearing a seatbelt or helmet.
- (o) Driving a vehicle carrying more persons or goods than the prescribed limit for the vehicle.
- (p) A driver of a public vehicle refusing to pick up passengers.
- (q) Driving a vehicle charging fares higher than the prescribed fare rate.
- (r) Driving a vehicle recklessly.
- (s) Driving a public vehicle without a route permit.
- (t) Driving a vehicle without carrying a driving license.

(2) A person who is unable to pay the fine imposed by a Transport Inspector or police under sub-section (1) immediately shall be given a receipt to pay such amount within twenty-four hours to the relevant police office or authorized officer.

(3) Notwithstanding anything contained in sub-section (1), if at the time of commission of an offense mentioned in sub-section (1), an officer of at least the rank of Assistant Police Inspector is not immediately present at the scene to punish the offender, any police constable present at the scene may issue a receipt to the offender, specifying the offense committed, to pay the fine amount due within twenty-four hours to the relevant police office.

(4) While issuing a receipt under sub-section (2) or (3), a copy of such receipt shall be signed by the person

receiving the receipt.

(5) If a person fails to pay the fine amount to the authorized officer or relevant police office within the time mentioned in sub-section (2) or (3), the authorized officer may impose a fine of up to one thousand rupees, and if such person is a driver, suspend the driving license; if the vehicle owner or manager, suspend the vehicle's route permit or the permit obtained to operate transport services, Amended by the First Amendment. for a maximum period of one month.

Added by the First Amendment.

(6) If the fine is not paid even during the suspension period under sub-section (5), the authorized officer may cancel such driving license, route permit or permit obtained to operate transport services. Chapter-11

Miscellaneous

165. Not to cause loss or damage: No person shall do or cause to do any act of beating the driver, conductor, security personnel, other vehicle staff or passengers inside a vehicle, stopping a vehicle, damaging a vehicle, or in any other way causing any loss or damage to such vehicle or to persons or goods inside the vehicle.

166. Vehicle owner or manager to pay: Except in cases where a driver has violated this Act or the rules or orders made under this Act negligently or maliciously, in other circumstances, the fine, medical expenses, funeral expenses or compensation amount payable by such driver under this Act shall be paid by the concerned vehicle owner or manager.

167. No punishment: Other than in the circumstances mentioned in Sections 161 and 162, if an accident occurs due to circumstances beyond the driver's control causing any loss or damage, the driver driving such vehicle shall not be subject to any punishment.

168. Operating transport services in a competitive manner: Notwithstanding anything contained elsewhere in this Act, in order to develop the transport business in a clean and competitive manner, a license shall not be granted to operate public transport services under a rotation system. Repealed by the Public Procurement Act, 2063

168a. Special provisions relating to vehicle inspection and pollution: The Department may permit private sector vehicle inspection and pollution testing centers, established under prevailing law and meeting prescribed standards, to carry out vehicle inspection and pollution testing and issue certificates. Added by the Act to Amend Some Nepal Acts, 2082.

168b. To be entered in electronic record system: (1) The Department shall construct an information technology-based electronic record system for transport services, in a manner that integrated details including details of vehicles registered under this Act and Provincial law, details of driving licenses, details available at the revenue office related to driving licenses, along with other personal and biometric data, are obtained.

(2) In the electronic record system under sub-section (1), the concerned body shall enter the details in a format prescribed by the Department.

169. Power to give direction: The Government of Nepal, the Department or the authorized officer may give necessary directions to transport entrepreneurs to make the transport business effective and to make transport services simple and easy. It shall be the duty of the transport entrepreneur to comply with the directions so given.

170.

Delegation of authority: The Department or the authorized officer may, as required, delegate any or all of the powers vested in them under this Act to any committee, officer, Transport Inspector or police.

171. Appeal: (1) An appeal against a decision or order of punishment made by an authorized officer, police or Transport Inspector under this Act shall lie to the Department. (2) An appeal against a decision or order of the Department under this Act shall lie to the High Court.

172. Limitation for filing complaints and period for filing appeals: Amended by the Act to Amend, Consolidate, Harmonize and Repeal Some Nepal Laws, 2074. (1)

For an offense under Section 161, a complaint must be filed within the period mentioned in Chapter-12 of Part-2 of the National Criminal Code, Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075. for an offense under Section 162, within the period mentioned in Chapter-14 of Part-2 of the National Criminal Code, and for other offenses under this Act, within thirty days from the date of the offense. (2) Except for offenses under Sections 161 and 162, for other offenses under this Act, an appeal must be filed within thirty-five days from the date of receipt of notice of the decision or order. 173. To provide assistance: In the course of implementing this Act or any rule made or order issued under this Act, if the authorized officer or Transport Inspector requests any kind of assistance, it shall be the duty of the police and all concerned to provide such assistance. 174. Drivers of other vehicles to comply with this Act: If a vehicle not required to be registered under this Act, or a person not required to obtain a driving license under this Act to drive any vehicle, while driving such vehicle, the driver must comply with the traffic signals determined by this Act or the rules made or orders issued under this Act. 175. Protection for work done in good faith: An authorized officer, or any committee, officer, Transport Inspector, police personnel or any concerned employee to whom authority has been delegated, shall not be personally liable for any act done in good faith in the course of performing their duties under this Act. 176. Special right: Notwithstanding anything contained elsewhere in this Act, the Government of Nepal may grant exemption from the application of any provision of this Act to any vehicle for a specified period. Added by the First Amendment. 176a.

Government of Nepal to be the plaintiff: The case under Section 161 and 162 shall be with the Government of Nepal as the plaintiff, and such case shall be deemed to fall under Schedule-1 of the National Criminal Procedure (Code) Act, 2074. 177. Power to remove difficulties: If any difficulty arises in the implementation of this Act, the Government of Nepal may, by an order published in the Nepal Gazette, remove such difficulty. 178. Power to amend Schedules: The Government of Nepal may, by a notice published in the Nepal Gazette, make necessary amendments to the Schedules. 179. Power to make rules: The Government of Nepal may make necessary rules for the purpose of this Act. 180. Repeal and saving: (1) The following Acts are hereby repealed:- (a) Motor Vehicles Act, 2020. (b) National Transport Management Act, 2026. (2) All acts and proceedings done under the Acts mentioned in sub-section (1) shall be deemed to have been done under this Act. Schedule-1 (Relating to Sections 3, 4 and 5) Classification of Vehicles Category (a) Large Vehicle (Relating to Section 3):- Bus, Truck, Tractor, Fire engine, Dozer, Loader, Dump truck, Crane, Roller, etc. Category (b) Medium Vehicle (Relating to Section 4):- Minibus, Minitruck, Jeep, Pickup, Van, Crane, Tractor, Roller, etc. Category (c) Small Vehicle (Relating to Section 5):- Car, Jeep, Van, Pickup, Motorcycle, Scooter, Tempo, Power tiller, etc. Schedule-2 (Relating to Sections 6, 7, 8, 9, 10 and 11) Vehicle Number Plate Part-1 Ordinary Vehicle Number Plate Category (a) Public Vehicle (Relating to sub-section (5) of Section 6):- Shall be in white letters and numerals on a black plate. Provided that from now on, for Tempos and Microbuses registered within Bagmati Zone and operated for hire inside the Ring Road and outside the Ring Road of Kathmandu Valley, the number plate shall be in black letters and numerals on a white plate. Category (b) Tourist Vehicle (Relating to sub-section (2) of Section 7):- Shall be in white letters and numerals on a green plate. Category (c) Private Vehicle (Relating to sub-section (3) of Section 8):- Shall be in white letters and numerals on a red plate. Category (d) Government Vehicle (Relating to sub-section (2) of Section 9):- Shall be in red letters and numerals on a white plate. Category (e) Vehicle of Organized Institution or Corporation (Relating to sub-section (2) of Section 10):- Shall be in blue letters and numerals on a yellow plate.

Category (f) Diplomatic Vehicle (Relating to sub-section (2) of Section 11):- Shall be in white letters and numerals on a blue plate. Note: 1. The number plate of the vehicle used by the President shall be as prescribed by the Government of Nepal. 2. For government vehicles used by the Vice-President, Prime Minister, Chief Justice, The Federal Parliament is currently established. Speaker and Deputy Speaker of the

Legislature-Parliament, and members of the Council of Ministers, the upper half of the number plate shall be on a red background and the lower half on a blue background, with letters and numerals in white color. Added by a notice published in the Nepal Gazette dated 2076.4.20. 2ka. For government vehicles used by the Provincial Head, Chief Minister, Speaker, Deputy Speaker of the Provincial Assembly, and members of the Provincial Council of Ministers, the upper half of the number plate shall be on a red background and the lower half on a white background, with letters and numerals in white and red colors respectively. 3. The size of the number plate for all types of large and medium vehicles shall be 14" x 8"; for small four-wheeler vehicles, the size shall be 12" x 7"; for three-wheeler Tempos, etc., the size shall be 10" x 7"; and for two-wheeler motorcycles, scooters, etc., the size shall be 8" x 5". 4. The letters and numerals on the number plate shall be at least 3 inches high and 1/2 inch thick for large and medium vehicles; 2 inches high and 1/2 inch thick for small four-wheeler and three-wheeler Tempos, etc.; and 2 inches high and 3/8 inch thick for motorcycles, scooters, etc. 5. Letters and numerals shall be written leaving a margin of 1/2 inch on all sides of the number plate (1/4 inch for motorcycle, scooter, etc. plates). The distance between numerals and letters shall be at least 1/4 inch, and the distance between the lower and upper lines shall be at least 1/2 inch. Part-2 Embossed Vehicle Number Plate Category (a) Public Vehicle (Relating to sub-section (5) of Section 6) Shall be in black letters and numerals on a yellow plate. Category (b) Tourist Vehicle (Relating to sub-section (2) of Section 7) Shall be in black letters and numerals on a yellow plate. Category (c) Private Vehicle (Relating to sub-section (3) of Section 8) Shall be in black letters and numerals on a white plate.

Category (d) Government Vehicle (Relating to sub-section (2) of Section 9) Shall be in red letters and numerals on a white plate. Category (e) Vehicle of Organized Institution or Corporation (Relating to sub-section (2) of Section 10) Shall be in red letters and numerals on a white plate. Category (f) Diplomatic Vehicle (Relating to sub-section (2) of Section 11) Shall be in blue letters and numerals on a white plate. Note: 1. On the vehicle used by the President, the plate shall have, on the left side, a glorious Nepali flag as per design and drawing, below the flag a gradient inscription from light blue at the top to dark blue at the bottom, NP in English capital letters in Arial Bold font, below the letters NP a chromium-based square hologram featuring a rhododendron shape and a seven-digit serial number, a colorful national emblem of Nepal, on the bottom right of the plate a laser-engraved seven-digit serial number, on the right side a Nepali flag, security features (NPL in black and white English capital letters, a small black and white national emblem), on the back of the plate a printed barcode including data input such as manufacturer's name, date of manufacture, time, quality assurance number, etc., and design and drawing as attached. 2. For government vehicles used by the Vice-President, Prime Minister, Chief Justice, The Federal Parliament is currently established. Speaker and Deputy Speaker of the Legislature-Parliament, and members of the Council of Ministers, the embossed number plate shall be in red letters and numerals on a white plate. 3. For vehicles falling under Categories (a) to (e), the embossed number plate shall have, on the left side, a glorious Nepali flag as per design and drawing, below the flag a gradient inscription from light blue at the top to dark blue at the bottom, NP in English capital letters in Arial Bold font, below the letters NP a chromium-based square hologram featuring a rhododendron shape and a seven-digit serial number in the middle of the hologram, on the bottom right of the plate a laser-engraved seven-digit serial number, security features (NPL in black and white English capital letters, a small black and white national emblem), on the back of the plate a printed barcode including data input such as manufacturer's name, date of manufacture, time, quality assurance number, etc., and design and drawing as attached.

Provided that for the front number plate used on small (two-wheeler) vehicles, a laser-engraved seven-digit serial number shall be mentioned in the upper right corner. 4. The letters, numerals, security features and other details to be on the embossed number plate used for diplomatic vehicles mentioned in Category (f)

shall be as prescribed by the Department. 5. The size of the number plate used on the front and rear of large vehicles, medium and small (four-wheeler) vehicles, small (three-wheeler) vehicles, and small (two-wheeler) vehicles shall be as follows:

S.No. Classification of Vehicle Size of Number Plate (Front) Size of Number Plate (Rear)

1. Large Vehicle 520×110 millimeters 340×200 millimeters
2. Medium and Small (Four-wheeler) Vehicle 430×110 millimeters 280×180 millimeters
3. Small (Three-wheeler) Vehicle 240×130 millimeters 240×130 millimeters
4. Small (Two-wheeler) Vehicle 300×80 millimeters 240×130 millimeters

6. The height, width and spacing of letters and numerals on the front and rear number plate of large vehicles, medium and small (four-wheeler) vehicles, small (three-wheeler) vehicles, and small (two-wheeler) vehicles shall be as follows in millimeters (mm):

S.No. Classification of Vehicle Height and Width of Letters (Front) Height and Width of Numerals (Front) Height and Width of Letters (Rear) Height and Width of Numerals (Rear) Spacing between Letters (Front) Spacing between Numerals (Rear)

1. Large Vehicle Ht 55, Wd 35 Ht 55, Wd 32 Ht 65, Wd 41.5 Ht 65, Wd 39 Front 8, Rear 8.5 Front 8, Rear 8
2. Medium and Small (Four-wheeler) Ht 55, Wd 35 Ht 55, Wd 32 Ht 55, Wd 35 Ht 55, Wd 32 Front 8, Rear 8 Front 8, Rear 8
3. Small (Three-wheeler) Vehicle Ht 34, Wd 22 Ht 34, Wd 20 Ht 34, Wd 22 Ht 34, Wd 22 Front 8, Rear 8 Front 8, Rear 8
4. Small (Two-wheeler) Vehicle Ht 34, Wd 22 Ht 34, Wd 20 Ht 34, Wd 22 Ht 34, Wd 20 Front 8, Rear 8 Front 8, Rear 8

7. On the front and rear number plate of large vehicles, medium and small (four-wheeler) vehicles, and small (three-wheeler) vehicles, letters and numerals shall be written leaving a margin of 15 millimeters on all sides. Provided that for small (two-wheeler) vehicles, letters and numerals shall be written leaving a margin of 12 millimeters on the plate. 8. The metal of the embossed vehicle number plate shall be at least 99% aluminum substrate, plate hardness H41 or H42, plate thickness 0.98 ± 0.03 millimeters, retroreflective sheet laminate on the plate as per EN 485 and EN 573-3 and international standard ISO 7591:1982. 9.

A Radio Frequency Identification Device (RFID) antenna, featuring an image of Mount Everest with the reddish glow of the morning sun, readable by an RFID reader from a distance of 8 to 10 meters, with a length of 105 millimeters, width of 70 millimeters and polyester film of at least 50 microns, shall be installed on the front windshield of large vehicles, medium and small (four-wheeler) vehicles, and small (three-wheeler) vehicles. Provided that for small (two-wheeler) vehicles, the RFID seat tag shall be installed on the rear number plate. 10. In the embossed letters and numerals, when hot stamping foil is applied, the words "NEPAL DOTM" shall be mentioned in Arial Bold font, sloping at a 45-degree angle. Amended by a notice published in the Nepal Gazette dated 2080/01/14. 11. Un-hardened, machine one-way screws with round heads of steel (Class 4.8) shall be up to eight pieces per vehicle. Amended by a notice published in the Nepal Gazette dated 2080/01/14. 12. The letters and numerals on the embossed vehicle number plate shall be in Devanagari script or English script or a combination of both scripts as decided by the Government of Nepal. Amended by a notice published in the Nepal Gazette dated 2074/7/13. 13. In the embossed vehicle number plate used on vehicles, until the naming of the province, the province number shall be mentioned; after the naming of the province, the name of the province shall be mentioned instead of the province number as

prescribed by the Department. 14. The Ministry of Physical Infrastructure and Transport shall, on the recommendation of the Department, implement the provisions relating to embossed vehicle number plates from the date and place specified by a notice published in the Nepal Gazette. Schedule-3 (Relating to Section 16) Format of Vehicle Registration Certificate Government of Nepal Amended by the Act to Amend Some Nepal Acts to Make Conformable with the Constitution of Nepal, 2075. Ministry of Physical Infrastructure and Transport Department of Transport Management Transport Management Office Vehicle Registration No.:- Type of Vehicle:- Date of Registration:- Name, Surname of Vehicle Owner:- Residence:- Signature of Vehicle Owner:- Signature of Authorized Officer:- Photo of Vehicle Owner Signature of Registering Officer:- Date:- Date of Transfer Photo of Vehicle Owner Name, Surname, Residence of Vehicle Owner:- Signature of Transferring Officer:- Renewal of Certificate Date of Renewal Date of Expiry of Renewal Signature of Renewing Officer Detailed Description of Vehicle:- 1. Name of Company:- 2.

Model (Year) of Vehicle:- 3. Number of Cylinders:- 4. Horse Power/CC:- 5. Chassis Number:- 6. Engine Number:- 7. Color of Vehicle:- 8. Seat Capacity (Including Driver):- 9. Weight:- 10. Petrol/Diesel:- 11. Radio, Cassette Player, Telephone etc. (Yes/No):- 12. Name of Company or Person from whom purchased:- 13. Use:- 14. Area of Operation:- 15. Customs Clearance:- Vehicle Inspection Date of Vehicle Inspection Date of Expiry of Renewal Signature of Inspecting Officer Remarks Schedule-4 (Relating to Section 21) Amended by the Act to Amend Some Nepal Acts to Make Conformable with the Constitution of Nepal, 2075. Ministry of Physical Infrastructure and Transport Department of Transport Management Transport Management Office Letter No.:- Chalan No.:- Received Letter No. and Date:- Date:- Section Subject:-Temporary Number. To: Shri In connection with the above subject, based on the application submitted by the person/firm/company to this office on date 20 / / and the evidence attached therewith, a temporary number has been issued for the vehicle with the following details for a specified period. 1. Name, Surname, Residence of Vehicle Owner :- 2. Temporary Number Issued :- 3. Duration of Temporary Number :- 4. Customs Clearance :- 5. Vehicle Manufacturer :- 6. Type of Vehicle :- 7. Number of Cylinders :- 8. Horse Power / CC :- 9. Chassis Number :- 10. Engine Number :- 11. Color of Vehicle :- 12. Seat Capacity (Including Driver) :- 13. Weight :- 14. Petrol/Diesel :- 15. Old Plate Number of Vehicle :- Schedule-5 (Relating to Section 50) Schedule amended by a notice published in the Nepal Gazette dated 2054/6/6. Government of Nepal HMG of Nepal Driving Licence Number: Name: Date of Issue: Ctz. No.: Father/Husband: Address: Expiry Date: Blood Group: Photograph The Holder of this Licence is authorised to drive the following vehicles. A. Motorcycle, Scooter, Moped F. Minibus, Minitruck B. Car, Jeep, Delivery Van G. Truck, Bus, Lorry C. Tempo, Autoricksha H. Road Roller, Dozer D. Powertillar I. Crane, Fire brigade, Loader E. Tractor J. Other Issued by Licence holder's signature Offences Schedule-6 (Relating to Section 67) Conductor's Licence L. No. Date of Issue Expiry Date Name:- Citizenship No.:- Father/Husband:- Address:- Photograph You are hereby issued a Conductor's Licence for the following vehicles. (a) Bus (b) Minibus (c) Truck Government of Nepal Amended by the Act to Amend Some Nepal Acts to Make Conformable with the Constitution of Nepal, 2075. Ministry of Physical Infrastructure and Transport Department of Transport Management Transport Management Office Passport No.:- Blood Group:- Conductor's Signature:- Schedule-7 (Relating to Section 73) (Format of Route Permit) Government of Nepal Amended by the Act to Amend Some Nepal Acts to Make Conformable with the Constitution of Nepal, 2075.

Ministry of Physical Infrastructure and Transport Department of Transport Management Transport Management Office Of the Officer granting the permit, - Name:- Rank:- Signature:- Date:- Length of Chassis:- Engine Number:- Model:- Name and Address of Company or Organisation manufacturing the vehicle:- Name and Address of Body Building Factory:- Permit No:- Type of Vehicle:- Name of Vehicle Owner or Manager:- Address:- Signature of Vehicle Owner or Manager:- Type of Vehicle:- Capacity Vehicle Number:- Chassis

Number:- Transfer According to the application dated 20 / / and the registration certificate dated 20 / / , the transfer has been made from the name of Shri to the name of Shri residing at Signature of Authority:- Date:- Permitted Area (Route) Current Validity Signature and Date of Officer granting or renewing the permit Schedule-8 (Relating to Section 93) (Format of Permit to Operate Transport Service) Government of Nepal Amended by the Act to Amend Some Nepal Acts to Make Conformable with the Constitution of Nepal, 2075. Ministry of Physical Infrastructure and Transport Department of Transport Management Photograph Registration No.:- Registration Date:- This permit is issued to operate the following service pursuant to Section 93 of the Motor Vehicles and Transport Management Act, 2049. (1) Name of Person/Firm/Company:- (2) Address:- (3) Main Place of Business:- (4) Type of Service to be Operated:- (5) Name, Surname and Designation of Owner/Partner/Operator (Main Person):- (6) Address:- (Signature of Main Person) (Signature of Director General)